EXHIBIT 5

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO

CIVIL ACTION NO.: 09-cv-00019-MSK-MEH

UNITED STATES OF AMERICA,

Plaintiff,

v.

CEMEX, INC.,

Defendant.

DEPOSITION

OF

JOHN LOHR

Taken on behalf of the Plaintiff.

DATE TAKEN: October 11, 2010

TIME: 8:50 a.m. - 6:00 p.m.

PLACE: Omni Hotel
245 Water Street
St. Augustine Room
Jacksonville, FL 32202

Examination of the witness taken before:

Dena Miller,
Certified Court Reporters
One Independent Drive, Suite 3210
Jacksonville, FL 32202
- - -

project impact?
A Well, again, I didn't estimate the percent. I estimated the tons per hour and calculated the percent.
Q Okay. Now, for the combustion chamber modification, that was completed in 1997; correct?
A I believe that's -- I mean, that's what I have here. I believe that's correct.
Q And so this is retrospective?
A Uh-huh.
Q So you actually had available actual production numbers and so forth?
A Correct.
Q And so --
A With all the vagaries that go with those production numbers, which I explained earlier.
Q Right. Well, let's look specifically at the combustion chamber modification. This document seems to suggest that it improved clinker production by 5.8 percent?
A That was certainly our best estimate, my best estimate at the time.
Q Sitting here today, do you have reason to believe that this number should be a different number?
A No. I think that is reasonably representative of what we believe that modification did.

A This one might be a little conservative.

Q Now, there is an entry further down, oxygen -- there is another entry a little further down: Oxygen Enrichment VSA Plant.

What period of time does this entry, Oxygen Enrichment, Liquid Oxygen, represent?

A I'm not following your question.

Q Well, they seem to be distinct projects.

A Okay, and they were.

Q And you've attributed, you know, specific production increases to liquid oxygen enrichment, as opposed to oxygen enrichment derived from the VSA plant. And so what I'm asking you is, over what period of time was liquid oxygen enrichment used?

A It would have pretty much spanned most of the time frame between '97 and the time that the oxygen enrichment plant was installed.

Q Was the oxygen enrichment plant -- and, I guess, for shorthand we'll sometimes refer to that as the VSA plant. Is that okay?

A That's another name for it.

Q Did it come on line in September of 1999?

A I don't recall. My memory is good, but it's not that good.

Q Okay. So once the VSA plant came on line, did the facility completely discontinue the use of liquid oxygen?

A I don't recall precisely. I believe there was a very short overlap period. But we were anxious to get rid of the liquid oxygen because it was so costly.

Q Okay.

A It was -- it varied anything from about $80 to $120 a ton, and I guess it's like anything else, it's like the dope dealer on the corner; it starts off cheap and gets more expensive. So we were seeing $125 material at that point in time is my recollection.

Q I understand. The Raw Mix Modification Fly Ash Addition CKD Return, what was this --

A I'm sorry, where are we?

Q The --

A Back up. Okay.

Q Yeah, back on Raw Mix Modification Fly Ash Addition CKD Return, what did this involve?

A Well, each of these projects was very much stand-on-its-own, at least up to through this particular point. We had a fellow on the staff at that point in time named Dave Hagerman. I believe he was a doctorate in chemistry. He was also pretty much a computer wiz.

And I need to give you just a little bit of background. We had a very complex mix situation in